

BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS AND THE
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2014-1584 & 2016-1596

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
REGISTRATION TO PRACTICE AS A REGISTERED PSYCHOTHERAPIST IN THE
STATE OF COLORADO AND THE LICENSE TO PRACTICE AS A PROFESSIONAL
COUNSELOR IN THE STATE OF COLORADO OF RACHEL RAGSDALE,
REGISTRATION NO. RP 104639, AND LPC NO. (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists and the State Board of Licensed Professional Counselor Examiners (together,
“Boards”) and Rachel Ragsdale (“Applicant”) as follows:

1. On or about December 6, 2013, Applicant applied for registration in the database to
practice as a registered psychotherapist (“RP”) in the State of Colorado (“RP Application”).
Applicant received her RP registration on June 20, 2014. On or about November 20, 2015,
Applicant applied for a license to practice as a professional counselor (“LPC”) in the State of
Colorado (“LPC Application”), and her request is currently pending.

2. The Boards have jurisdiction over Applicant, her RP registration, the RP and LPC
Applications, and the subject matter of this Stipulation and Final Agency Order (“Order”).

3. It is the intent of the parties and the purpose of this Order to provide for a settlement
of all matters arising out of Applicant’s initial applications for registration as a RP and licensure
as a LPC in the State of Colorado without the necessity of holding a formal hearing. This Order
is a full and final resolution of case numbers 2014-1584 and 2016-1596. This Order does not
resolve any other cases, complaints, or matters, known or unknown to the Boards or Applicant,
as of the effective date of this Order.

4. Applicant admits the following:

- a. On or about December 6, 2013, Applicant applied for registration as a RP in the
State of Colorado.
- b. On the RP Application, Applicant answered “yes” to question 6 which states:
“Have you ever received a deferred judgment or been convicted of or pled nolo

contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”

c. On or about November 20, 2015, Applicant applied for licensure as a LPC in the State of Colorado, and her request is currently pending.

d. On the LPC Application, Applicant answered “yes” to question 2 which states “Has any disciplinary action ever been taken regarding any psychotherapy/drug and alcohol services certification/license which you now hold or have ever held?”

e. On the LPC Application, Applicant answered “yes” to question 6 which states: “Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”

f. On or about March 28, 2013, Applicant pled guilty to DWAI, a misdemeanor, in Case No. 13M00596, in County Court, City & County of Denver, Colorado. She was sentenced to electronic monitoring and twelve (12) months of probation.

g. Applicant has admitted to a DWAI conviction.

h. On or around June 20, 2014, Applicant executed and is currently under a Stipulation and Final Agency Order with the RP Board in case number 2014-1584 (“2014 Order”) that includes the terms as outlined below. Applicant has not completed the terms of the 2014 Order. This Order is a continuation of the 2014 Order and is intended to also include Applicant’s LPC Application and case number 2016-1596.

5. By virtue of the facts admitted in paragraph 4 above, the Boards find that Applicant violated §12-43-222(1)(e), C.R.S.

6. By virtue of the admissions contained in paragraphs 4 and 5 above, Applicant specifically agrees to maintain her RP registration as previously granted and to accept a LPC license subject to the terms and conditions outlined below. Applicant further agrees that the LPC Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a LPC license. Applicant consents to the following limitations to her RP registration and LPC license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this LPC license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant’s registration to practice psychotherapy and license to practice professional counseling in the State of Colorado are hereby placed on probation for two (2) years commencing from the effective date of the 2014 Order, the date Applicant was approved for her RP

registration, or the date Applicant entered into a contract with PAS, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.

8. Credit toward satisfying the period of probation shall be given only during such periods of time that Applicant is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

- a. Applicant is not practicing as a RP or LPC or engaged in the practice of psychotherapy and/or professional counseling in the State of Colorado; and
- b. Applicant is not actively participating in a Board-approved approved peer assistance services program as set forth below in paragraphs 9 and 10 of this Order; and
- c. Applicant is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES ("PAS")

9. As a term of this Order and Applicant's probationary status, Applicant shall enter into and successfully complete a contract with PAS or Board-approved alternative treatment program for a minimum period of two (2) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

10. If Applicant has not already done so, she shall enter into a contract with PAS or Board-approved alternative treatment program within fourteen (14) days from the effective date of this Order. Applicant agrees to cease the practice of professional counseling after fourteen (14) days until such time as Applicant enters into a contract with PAS.

a. Urine/Blood Screens. Applicant shall submit to full panel urine or blood tests during participation in PAS or Board-approved alternative treatment program, as ordered by the Boards, Applicant's employer, or Applicant's treatment program monitor, at a frequency determined by Applicant's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Applicant must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Applicant's treatment program with Applicant's application for discharge of the probation period.

b. Other Requirements. Applicant shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the PAS or Board-approved alternative treatment program, as specified in the contract signed by Applicant.

c. Releases. Applicant hereby waives any right or claim of confidentiality to any information, test results or other data pertaining to Applicant's treatment progress, or lack thereof, with PAS or the Board-approved alternative treatment program, and will execute a

Release authorizing PAS or the Board-approved alternative treatment program to release any and all information pertaining to Applicant's cases to the Boards upon their request. Applicant shall keep all releases current and in effect.

d. Completion of Program. If Applicant satisfactorily completes the treatment program, verification to the Boards by PAS or the Board-approved alternative treatment program of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Boards to verify Applicant's completion of treatment. It is Applicant's responsibility to ensure that PAS or the Board-approved alternative treatment program submits verification to the Boards of completion of treatment.

e. Withdrawal from Program. Applicant must immediately notify the Boards in writing if Applicant withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Applicant's treatment program.

TERMS AND CONDITIONS

11. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

12. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

13. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Boards.

14. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Boards of the change of address within 30 days of the effective date of such change.

15. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

16. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

17. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

18. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

19. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

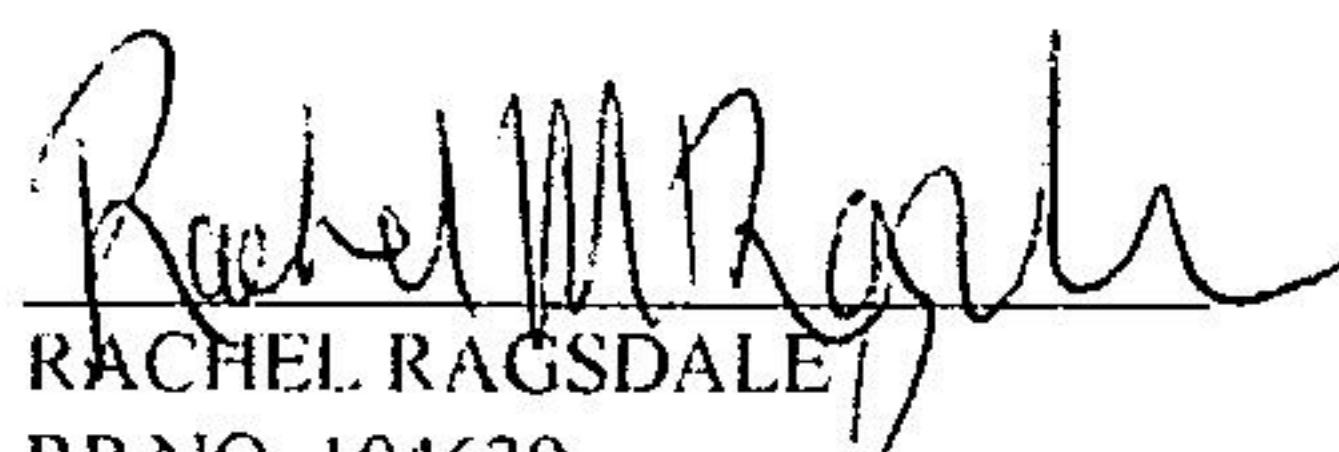
20. This Order constitutes the entire agreement between Applicant and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

21. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Boards, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Boards. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Boards.

22. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

APPLICANT


RACHEL RAGSDALE
RP NO. 104639
LPC NO. (Pending)

AGREED TO AND ORDERED BY:

BOARD OF REGISTERED
PSYCHOTHERAPISTS AND
BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


CATHERINE RODRIGUEZ
Program Director

Effective this 15th day of
July, 2016.